

THE PUBLIC GENERAL STATUTES.

[22 GEO. 5.]

CHAPTER 1.

An Act to make provision for the imposition of duties of Customs on articles wholly or mainly manufactured which are being imported into the United Kingdom in abnormal quantities, and for purposes connected therewith.

[20th November 1931.]

Most Gracious Sovereign :

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, with a view to preventing the importation into the United Kingdom in abnormal quantities of articles wholly or mainly manufactured, have freely and voluntarily resolved to give and grant unto Your Majesty the duties for the imposition of which provision is hereinafter contained; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If the Board of Trade are satisfied that articles of any class or description comprised in Class III. of the Import and Export List issued under the authority of the Treasury and the Commissioners of Customs and Excise for the year nineteen hundred and thirty-one are being imported into the United Kingdom in abnormal quantities, it shall be lawful for the Board, with the concurrence of the Treasury, by Order to apply this Act to articles of that class or description.

Power of
Board of
Trade to
apply Act.

(2) An Order made under this section shall be laid before the Commons House of Parliament so soon as may be after it is made, and shall cease to have effect on the expiration of a period of twenty-eight days from the date upon which it was made unless at some time before the expiration of that period it has been approved by a resolution passed by that House:

Provided that, in reckoning any such period of twenty-eight days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which the Commons House is adjourned for more than four days.

(3) An Order so made may be varied or revoked by a subsequent Order made in the like manner and subject to the like provisions.

Charge of
Customs
duties on
articles to
which this
Act applies.

2.—(1) Subject to the provisions of this Act, there shall, on the importation into the United Kingdom of articles of any class or description to which, by virtue of an order made under the last preceding section, this Act for the time being applies, be charged thereon such duties of Customs as may be specified in the Order not exceeding one hundred per cent. of the value of the articles.

9 & 10 Geo. 5.
c. 32.

(2) No articles which are Empire products within the meaning of that expression as used in subsection (1) of section eight of the Finance Act, 1919, shall be chargeable with duty under this Act.

(3) Any duty chargeable under this Act on any article shall be charged in addition to any other duties of Customs chargeable on that article.

Value of
articles for
purpose of
Act.

3.—(1) The value of any imported articles for the purposes of this Act shall be taken to be the price which an importer would give for the articles if the articles were delivered to him, freight and insurance paid, in bond at the port of importation, and duty shall be paid on that value as fixed by the Commissioners of Customs and Excise.

(2) The Commissioners of Customs and Excise may make regulations for the purpose of giving effect to the provisions of this section and in particular for requiring any person concerned with the importation of articles into the United Kingdom to furnish to the

Commissioners in such form as they may require such information as is in their opinion necessary for a proper valuation of the articles, and to produce any books of account or other documents of whatever nature relating to the purchase, importation or re-sale of the articles by that person.

(3) If any person contravenes or fails to comply with any regulations made under this section, he shall in respect of each offence be liable to a customs penalty of fifty pounds.

4. If—

- (a) any dispute arises whether any articles imported into the United Kingdom are articles specified in an Order made under this Act; or
- (b) in ascertaining the proper rate of duty chargeable on any articles under this Act, any dispute arises as to the value of the articles;

Determina-
tion of
disputes.

the question shall be referred to the arbitration of a referee appointed by the Lord Chancellor, who shall not be an official of any Government department, and the decision of the referee with respect to the matter in dispute shall be final and conclusive, and sections thirty and thirty-one of the Customs Consolidation Act, 1876, shall apply as if the dispute were such a dispute as is referred to in the said section thirty, with the substitution of the application for a reference to a referee under this section for the action or suit mentioned in those sections.

39 & 40 Vict.
c. 36.

5. Subject to compliance with such conditions as to the security for the re-exportation of the articles as the Commissioners of Customs and Excise may impose, this Act shall not apply to articles imported for exportation after transit through the United Kingdom or by way of transhipment.

Exception
for transit
articles.

6. Anything authorised under this Act to be done by the Board of Trade may be done by the President of the Board, or, in his absence, by a Secretary of State.

Exercise of
powers of
Board of
Trade under
Act.

Short title,
construc-
tion and
extent.

7.—(1) This Act may be cited as the Abnormal Importations (Customs Duties) Act, 1931.

(2) In this Act the expression “the United Kingdom” does not include the Isle of Man.

(3) This Act shall continue in force for a period of six months and no longer: Provided that the expiry of this Act shall not affect the previous operation thereof or of any Order made thereunder, or any obligation or liability previously incurred under this Act or any such Order in respect of any duty of Customs, penalty, forfeiture, or punishment, or the taking of any steps, or the institution or carrying on of any proceedings to determine the amount of any such duty or enforce any such obligation or liability.

CHAPTER 2.

An Act to deal with certain Expiring Laws by making some of them permanent and continuing the remainder for limited periods.

[1st December 1931.]

WHEREAS the Acts mentioned in the Schedules to this Act are, in so far as they are in force and are temporary in their duration, limited to expire—

- (a) as respects those mentioned in the First Schedule and in Parts I and III of the Second Schedule, on the thirty-first day of December, nineteen hundred and thirty-one; and
- (b) as respects that mentioned in Part II of the Second Schedule, in England on the twenty-fifth day of December, nineteen hundred and thirty-one, and in Scotland on the twenty-eighth day of May, nineteen hundred and thirty-two:

And whereas it is expedient that the Acts mentioned in the First Schedule should be made permanent and that the Acts mentioned in the Second Schedule should be continued as in this Act mentioned, together in each case with any enactments amending or affecting the same: